

25PSCV03752 25PSCV03752

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Case Number: 25PSCV03752 Hearing Date: September 8, 2026 Dept: 6

Plaintiff Jacob Houser's Request for Entry of Default Judgment

Defendant: Cody William Leffler, Efrain Vargas Rivera

TENTATIVE RULING

On the condition that Plaintiff dismisses the Doe Defendants, the Court GRANTS Plaintiff's request for entry of default judgment against Defendant Cody Leffler in the amount of \$132,850.25. The Court GRANTS Plaintiff's request for entry of default judgment against Defendant Efrain Vargas Rivera in the amount of \$15,000.00. For the sake of clarity, Defendant Rivera's liability is joint and several with Defendant Leffler, but subject to the limitations of Vehicle Code section 17151. If Plaintiff agrees to dismiss the Doe Defendants, the Court directs Plaintiff to submit a request for dismissal and revised proposed judgments for the Court's review and signature before the hearing on this matter. If Plaintiff does not dismiss the Doe Defendants, the Court DENIES Plaintiff's request for entry of default judgment without prejudice.

BACKGROUND

This is an auto accident case. On October 17, 2025, plaintiff Jacob Houser (Plaintiff) filed this action against defendants Cody William Leffler (Leffler), Efrain Vargas Rivera (Rivera) (collectively, Defendants), and Does 1 to 50, alleging causes of action for motor vehicle and general negligence.

On December 15, 2025, the court clerk entered default against Defendants.

On July 2, 2026, Plaintiff requested entry of default judgment against Defendants.

LEGAL STANDARD

Code of Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal.

Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff seeks default judgment against Defendant Leffler in the amount of \$282,414.80, including \$56,892.55 in special damages, \$225,000.00 in general damages, and \$522.25 in costs. Plaintiff also seeks default judgment against Defendant Rivera solely in the amount of \$15,000.00 based on the limit of Vehicle Code section 17151. First, Plaintiff did not dismiss the Doe Defendants stating that Plaintiff is still investigating potentially liable parties and that "Plaintiff may identify additional parties who bear responsibility for the subject accident and who may have applicable insurance coverage." (Application for Entry of Separate Judgment, ¶ 4.) The Court finds this speculative and not a proper basis for keeping this action open. (See Civ. Code, § 579.) Plaintiff's vehicle was rear ended by Defendants' vehicle. Plaintiff has not identified any other potentially responsible parties or any reasonable basis for believing anyone other than the defendant driver was responsible for the accident. Plaintiff has had sufficient time to identify any additional responsible parties. The Court will therefore not exercise its discretion to enter separate judgments leaving the case open only against doe defendants.

Second, the Court finds Plaintiff's damages claim as to Defendant Leffler overstated. Plaintiff's bill from PIH Health shows Plaintiff's portion of the bill is \$378.00, not \$24,942.55. Plaintiff has not submitted any evidence that the remaining balance from the \$24,942.55 was actually paid by insurance. (Request for Entry of Court Judgment, p. 4, Okun Decl., Ex. F.) The bill indicates there was insurance coverage and Plaintiff can only recover the amount actually incurred. Plaintiff's medical bills therefore total \$32,328.00. (Request for Entry of Court Judgment, Okun Decl., Exs. D-H.) Moreover, Plaintiff's general damages calculation is approximately seven times the amount of Plaintiff's actual damages, which the Court finds excessive. The Court will therefore instead award Plaintiff \$32,328.00 in special damages, \$100,000.00 in general damages, and \$522.25 in charges against Leffler, for a total of \$132,850.25, conditioned on Plaintiff dismissing the Doe Defendants. Because the vehicle owner's liability is limited to \$15,000.00, pursuant to Vehicle Code section 17151, subdivision (a), the Court will enter judgment against Rivera in the amount of \$15,000.00, but again conditioned on Plaintiff dismissing the Doe Defendants. For the sake of clarity, Defendants are jointly and severally liable subject to the limits of Vehicle Code section 17151 as to Defendant Rivera. (*Burton v. Gardner Motors, Inc.* (1981) 117 Cal.App.3d 426, 431 ["The owner and operator of a vehicle are considered joint tortfeasors and are jointly and severally liable for the same damages up to the limit specified in the statute for the owner's liability. [Citations]"]; *Lopez v. Blecher* (1983) 143 Cal.App.3d 736, 740 ["The owner and permissive user are declared jointly and severally liable for the same damages up to the limit specified in the statute imposing joint tortfeasor status upon the owner. [Citations]"].)

CONCLUSION

On the condition that Plaintiff dismisses the Doe Defendants, the Court GRANTS Plaintiff's request for entry of default judgment against Defendant Cody Leffler in the amount of \$132,850.25. The Court GRANTS Plaintiff's request for entry of default judgment against Defendant Efrain Vargas Rivera in the amount of \$15,000.00. For the sake of clarity, Defendant Rivera's liability is joint and several with Defendant Leffler, but subject to the limitations of Vehicle Code section 17151. If Plaintiff agrees to dismiss the Doe Defendants, the Court directs Plaintiff to submit a request for dismissal and revised proposed judgments for the Court's review and signature before the hearing on this matter. If Plaintiff does not dismiss the Doe Defendants, the Court DENIES Plaintiff's request for entry of default judgment without prejudice.